

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Latrice Frazier	Team: Squad #1	CCRB Case #: 201904933	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 05/25/2019 10:30 PM	Location of Incident: Sutter Avenue and Barbey Street	Precinct: 75	18 Mo. SOL 11/25/2020	EO SOL 7/12/2021	
Date/Time CV Reported Wed, 05/29/2019 11:36 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 06/07/2019 11:05 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Christian Salazar	22478	951195	075 PCT
2. POM Brandon Gentz	09505	961785	075 PCT
3. LT Alexander Bobo	00000	947985	075 PCT
4. POM Billy Dill	03000	929737	075 PCT
5. POF Jocelyn Romero	03089	966815	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Taylor Corcoran	05130	964456	075 PCT
2. POF Kristen Perkins	07214	951044	075 PCT
3. POM Oscar Mancilla	00456	959782	075 PCT
4. SGT Jose Deschamps	02706	931631	075 PCT
5. POM Korey Brierre	17622	960278	075 PCT
6. POF Keynaya Gorman	23242	962443	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Brandon Gentz	Abuse: Police Officer Brandon Gentz searched the vehicle in which § 87(2)(b) was an occupant.	
B.POM Brandon Gentz	Abuse: Police Officer Brandon Gentz searched the vehicle in which § 87(2)(b) was an occupant.	
C.LT Alexander Bobo	Abuse: Sergeant Alexander Bobo threatened to arrest § 87(2)(b)	
D.LT Alexander Bobo	Abuse: Sergeant Alexander Bobo searched the vehicle in which § 87(2)(b) was an occupant.	
E.POM Brandon Gentz	Abuse: Police Officer Brandon Gentz searched the vehicle in which § 87(2)(b) was an occupant.	
F.POM Christian Salazar	Abuse: Police Officer Christian Salazar searched the vehicle in which § 87(2)(b) was an occupant.	
G.POF Jocelyn Romero	Abuse: Police Officer Jocelyn Romero frisked § 87(2)(b)	
H.POF Jocelyn Romero	Abuse: Police Officer Jocelyn Romero frisked § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
I.POM Billy Dill	Abuse: Police Officer Billy Dill threatened to arrest § 87(2)(b)	

Case Summary

On May 29, 2019, § 87(2)(b) filed the following complaint with the IAB command center via telephone on behalf of himself, his girlfriend § 87(2)(b) and a friend, § 87(2)(b). The CCRB received the complaint on June 7, 2019.

On May 25, 2019, Police Officer Brandon Gentz and Police Officer Christian Salazar, of the 75th Precinct, stopped § 87(2)(b)'s vehicle in the vicinity of Barbey Street and Sutter Avenue in Brooklyn for a faulty brake light and PO Gentz entered § 87(2)(b)'s vehicle and pressed the brakes (**Allegation A – Abuse of Authority: § 87(2)(g)**). PO Gentz exited, then returned to the vehicle and searched the vehicle (**Allegation B – Abuse of Authority: § 87(2)(g)**). § 87(2)(b) was subsequently arrested. Sgt. Alexander Bobo, of the 75th Precinct, threatened to arrest § 87(2)(b) if she did not hand over a phone (**Allegation C – Abuse of Authority: § 87(2)(g)**). Sgt. Bobo searched the front passenger's seat of the vehicle (**Allegation D – Abuse of Authority: § 87(2)(g)**). PO Gentz and PO Salazar searched the interior of § 87(2)(b)'s vehicle (**Allegations E and F – Abuse of Authority: § 87(2)(g)**). PO Jocelyn Romero, of the 75th Precinct, frisked § 87(2)(b) and § 87(2)(b) (**Allegations G and H – Abuse of Authority: § 87(2)(g)**). PO Billy Dill, of the 75th Precinct, told § 87(2)(b) that he would arrest her if she did not step away from the vehicle (**Allegation I – Abuse of Authority: § 87(2)(g)**).

§ 87(2)(b) was charged with § 87(2)(b).

(Board Review 01).

Body-worn camera (BWC) and cell phone footage captured this incident (**Board Reviews 03 - 15, 29-31**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Brandon Gentz searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (B) Abuse of Authority: Police Officer Brandon Gentz searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that Police Officer Brandon Gentz and Police Officer Christian Salazar stopped § 87(2)(b)'s vehicle, for a defective rear brake light. Body-worn camera video captured PO Gentz enter § 87(2)(b)'s vehicle twice.

§ 87(2)(b) stated that after he pulled over, PO Gentz requested his license and registration. § 87(2)(b) did not provide the paperwork but rather asked why he was stopped and started to record the incident with his mobile phone. After some back and forth with PO Gentz requesting his license and registration and § 87(2)(b) not providing them, PO Gentz informed him that his brake light was out. § 87(2)(b) had recently purchased his car, did not believe that his brake lights were defective, and asked if he could exit his car to inspect his brake lights. PO Gentz allowed § 87(2)(b) to exit and view his brakes while PO Gentz pressed on the brakes. § 87(2)(b) stood at the back of his car with PO Salazar during the test, disagreed with PO Salazar's assessment that the brake light was out, turned off his video, and then provided his license and registration to PO Gentz. § 87(2)(b) did not allege that PO Gentz entered his vehicle a second time (**Board Review 28**).

PO Gentz's BWC began prior to the stop and captured the totality of the conversation leading up to his entries into § 87(2)(b)'s vehicle (**Board Review 03**). PO Gentz first requests § 87(2)(b)'s license, registration, and insurance at the 00:53 timestamp of the video. § 87(2)(b) argues back and forth with PO Gentz saying that he wants to know why he was stopped before providing his documents and PO Gentz responding that he will explain the stop once § 87(2)(b) provides his documents. At 04:39, PO Gentz informs § 87(2)(b) that they stopped him because his rear window brake light is out. § 87(2)(b) asks whether he can check the brakes and PO Gentz tells him that he can and asks him to first produce his documents. PO Gentz then

allows § 87(2)(b) to exit and at 05:13, though without first obtaining his documents. § 87(2)(b) asks PO Gentz if he wants to step in and push the brake light so he can see. PO Gentz replies, "If you give me permission." § 87(2)(b) replies, "I give you permission to just do the brake light for me." PO Gentz says, "and then after you're going to give me your license, registration, and insurance, right?" PO Gentz then sits in the driver's seat and presses the brakes. PO Gentz exits the vehicle at 05:38 and § 87(2)(b) proceeds to argue with PO Gentz and PO Salazar about whether the law requires two or three working brake lights and pointing out other cars in the street who he believes also lack a third brake light. During that time, PO Gentz joins § 87(2)(b) and PO Salazar at the rear of the car and PO Gentz asks § 87(2)(b) two more times for his documents, but § 87(2)(b) neither provides them nor responds with regard to them. At 07:03, PO Gentz reaches underneath § 87(2)(b)'s driver's seat for approximately two seconds. PO Gentz then closes the door and asks § 87(2)(b) if he is going to provide his license, registration, and insurance. At 07:20, § 87(2)(b) approaches his car and retrieves the documents from the front passenger's side of the car and provides them to PO Gentz. The conversation indicates that § 87(2)(b) provided a temporary DMV registration but no proof of insurance. In PO Gentz's second BWC video from the beginning to 00:30 (**Board Review 07**), PO Gentz informs Sgt. Bobo of the events that occurred prior to his arrival, detailing how § 87(2)(b) was uncooperative from the very beginning when they "already suspected him of like a forged plate."

PO Gentz testified that he stopped § 87(2)(b) for a faulty brake light but also noticed, as he approached the driver's side, that the vehicle had a temporary plate in the window that appeared to be forged. The plate was improperly displayed in the rear window, a dark area, so was unable to read prior to the stop. PO Gentz asked § 87(2)(b) approximately 8-10 times for his license, registration, and proof of insurance. § 87(2)(b) ignored the requests and asked to know the reason for the stop while recording with a mobile device and grew irate by raising his voice. PO Gentz explained to § 87(2)(b) that he would be more than happy to provide § 87(2)(b) with the reason for the stop after § 87(2)(b) provided his license, registration, and proof of insurance. § 87(2)(b) continued to ask for the reason for the stop and did not provide any of the requested items. PO Gentz, in the hopes of assuring § 87(2)(b) that the stop was not a "big deal," allowed § 87(2)(b) to exit the vehicle so that he could see for himself that the brake light was out. PO Gentz requested permission from § 87(2)(b) to place his foot on the brake, which § 87(2)(b) consented to, so that § 87(2)(b) could see that his rear brake light was out. PO Gentz tested the brakes. Afterward, § 87(2)(b) remained irate, and his continued non-compliance seemed excessive for a Vehicle and Traffic Law (VTL) violation and thus raised PO Gentz's suspicions that the vehicle might be stolen. § 87(2)(b) eventually provided his driver's license and registration.

PO Gentz' BWC, starting at 07:00, was played during his interview. The video showed PO Gentz reach underneath § 87(2)(b)'s driver's seat, for approximately two seconds, shortly after he exited from testing the brakes. PO Gentz testified that he returned to the vehicle and reached inside, "checking to see if there was license, registration or insurance there; a lot of people keep it there" (**Board Review 16**).

PO Salazar testified that as he approached on the passenger's side of the vehicle, he noticed that the temporary paper plate in the rear window looked forged based on his experience with forged plates in the 75th Precinct. PO Gentz asked § 87(2)(b) for his license, registration, and insurance. § 87(2)(b) stated that he had just purchased the vehicle in Connecticut but did not have any documentation with his name on it (**Board Review 17**).

§ 87(2)(b) was charged with § 87(2)(b)

(**Board Review 01**).

In People v Hayden 155 A.D.3d 1309, the court determined that an officer lawfully searched a vehicle during a traffic stop after the owner provided voluntary and spontaneous consent. Furthermore, the involved trooper subsequently confirmed the owner's statement by specifically requesting to search the vehicle (**Board Review 19**).

Per VTL §401 [1], [4], [18], drivers are required to carry a registration certificate when operating a vehicle. Failure to produce the certificate is presumptive evidence of operating an unregistered vehicle, which is punishable by fine or imprisonment (**Board Review 49**).

Under the automobile exception to the warrant requirement, officers may search an automobile when they have reason to believe that the car may contain evidence related to the crime for which the occupant was arrested, People v. Belton, 55. N.Y.2d 49 (**Board Review 42**).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (C) Abuse of Authority: Sergeant Alexander Bobo threatened to arrest § 87(2)(b) .

PO Salazar requested an additional unit to the scene and § 87(2)(b) was arrested. It is undisputed that § 87(2)(b) put his cell phone into his car as he exited and was handcuffed. Per Sgt. Bobo's BWC video, Sgt. Bobo told § 87(2)(b) to hand over the cell phone or go to jail.

§ 87(2)(b) stated that § 87(2)(b) handed his cell phone to § 87(2)(b) who was sitting in the rear of the vehicle, and then exited the vehicle and was placed in handcuffs. § 87(2)(b) sat in the front passenger's seat and Sgt. Bobo asked her for the cell phone. § 87(2)(b) responded that she did not have the phone. He then said, "the phones you have in your hands." § 87(2)(b) was holding two phones in her hands at the time and said that they were both her phones but handed them over to Sgt. Bobo. § 87(2)(b) did not allege that anyone threatened to arrest her (**Board Review 38**).

§ 87(2)(b) stated that an officer asked § 87(2)(b) to hand over his cell phone and exit the vehicle. § 87(2)(b) subsequently "tossed" his phone into the back seat, exited the car, and was placed in handcuffs. An officer then instructed § 87(2)(b) to pass him "the phones." § 87(2)(b) complied. § 87(2)(b) did not allege that anyone threatened to arrest § 87(2)(b) § 87(2)(b) did not remember what happened to § 87(2)(b)'s phone (**Board Review 39**).

In PO Mancilla's BWC, at 00:28, § 87(2)(b) exits the vehicle upon officer request and is holding his cell phone in his right hand and what appears to be a cigarette between his index and middle finger of his left hand. An officer instructs him to put his phone on top of the car and he

subsequently moves the phone to his left hand and leans his upper body into his car though due to the camera angle, his upper body is not seen once he leans into the car. § 87(2)(b) stands upright and then at 00:41, he leans his upper body into the car again and says, “lock your phone; lock your phone (Board Review 06).”

Sgt. Bobo’s BWC captures him (Sgt. Bobo) standing at the front passenger’s side door at 00:58 in the video player. § 87(2)(b) is standing just outside of his car by the open driver’s side door. Sgt. Bobo says, “pass me that phone ma’am” and then repeats the request three more times. A phone is visible in § 87(2)(b)’s hands in her lap. It is not clear whether § 87(2)(b) hands him a phone. Sgt. Bobo then walks to the driver’s side of the vehicle next to § 87(2)(b) and at 01:25 and says, “Give me the phone, or you are going in cuffs too.” It is not clear to whom he is speaking. § 87(2)(b) responds, “That’s her phone. That’s not they (sic) phone.” Sgt. Bobo then returns to the front passenger’s side door and between 01:32 and 01:58, he says, “Give me the phone, or you are going to jail, give me the phone or you are going to jail” to § 87(2)(b). § 87(2)(b) responds I’m going to jail? I don’t have his phone. Sgt. Bobo responds, “Yea, give me the phone, the phone that he just threw to you; give it to me.” Sgt. Bobo opens § 87(2)(b)’s door, and § 87(2)(b) exits the vehicle. Sgt. Bobo takes the phone out of her hand, and § 87(2)(b) says, “but that’s my phone.” Sgt. Bobo asks, “Do you want to play games?” At 02:07, there are two cell phones sitting on the front passenger seat (Board Review 05).

Sgt. Bobo testified that when officers started to place § 87(2)(b) under arrest, he observed § 87(2)(b) toss his cellphone and unknown “paraphernalia” onto the driver’s seat and § 87(2)(b) picked them up. He saw the cell phone easily since it lit up but could not describe the paraphernalia. Sgt. Bobo simultaneously smelled marijuana emanating from the car so thought that it might be drugs. He subsequently told § 87(2)(b) to hand over the phone or go to jail because of his observation of § 87(2)(b) taking possession of § 87(2)(b)’s cellphone and an unidentified item at the time of his arrest. As § 87(2)(b) was under arrest, his property needed to be safeguarded and his handing off of items in combination with the scent of marijuana made Sgt. Bobo suspect that there were possibly drugs in the car. Sgt. Bobo obtained two cell phones from § 87(2)(b) (Board Review 36).

According to New York Penal Law Section 195.05, a person is guilty of obstructing governmental administration (OGA) when he intentionally obstructs the administration of law or other governmental function or by means of physical force or interference (Board Review 37).

§ 87(2)(g)

Allegation (D) Abuse of Authority: Sergeant Alexander Bobo searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (E) Abuse of Authority: Police Officer Brandon Gentz searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (F) Abuse of Authority: Police Officer Christian Salazar searched the vehicle in which § 87(2)(b) was an occupant.

Sgt. Bobo, PO Gentz, and PO Salazar all acknowledged searching § 87(2)(b)’s vehicle and are captured on BWC doing so.

§ 87(2)(b) (Board Review 28) stated that when he was handcuffed, an officer told him that his temporary plates looked “foogazie.” He was subsequently placed in the rear of a police

vehicle. Several additional officers arrived on scene and had § 87(2)(b) and § 87(2)(b) stand at the back of his car. § 87(2)(b) made no mention of his vehicle being searched. § 87(2)(b) (**Board Review 39**) and § 87(2)(b) (**Board Review 38**) testified that multiple officers searched the interior of § 87(2)(b)'s vehicle as they stood at the rear of the car.

Starting at 09:57 of PO Gentz's 1st BWC recording (**Board Review 03**), after demonstrating the non-working brake light to him, PO Gentz instructs § 87(2)(b) to wait inside his vehicle while they run his information. § 87(2)(b) says that he does not want to sit in his car and asks PO Gentz to turn off the police light. PO Gentz denies the request and as § 87(2)(b) enters his car, PO Gentz informs PO Salazar to call for an additional unit because he just saw § 87(2)(b) drop drugs on the floor. § 87(2)(b)'s hands are not visible in the BWC as the side mirror of the police vehicle blocks their view). PO Gentz describes what he saw, to PO Salazar, as a white baggie. At 12:52, PO Gentz approaches Sgt. Bobo upon his arrival. PO Gentz informs Sgt. Bobo that § 87(2)(b) was going to fight them, so they wanted more officers on scene. He also saw § 87(2)(b) dump drugs on the floor of the car, so they want to get him out of the car and handcuffed without incident. There is no further discussion with Sgt. Bobo at that time.

Starting at 01:10 of Sgt. Bobo's BWC (**Board Review 05**), after obtaining the above information from PO Gentz, Sgt. Bobo approaches § 87(2)(b)'s vehicle from the rear passenger's side in which § 87(2)(b)'s temporary plate is visibly illuminated by the police lights in the rear windshield on the passenger's side of the car (**Board Review 47**), Sgt. Bobo makes his way to the front passenger's side of § 87(2)(b)'s vehicle while § 87(2)(b) argues with the officers on the driver's side. Sgt. Bobo asks them why § 87(2)(b) is not in cuffs and instructs them to put him in cuffs. From 02:00-02:08, after § 87(2)(b) is handcuffed and § 87(2)(b) hands over the cell phones and exits the front passenger's seat, Sgt. Bobo leans into § 87(2)(b)'s car and over the front passenger's seat, and shines his flashlight between the driver's and front passenger's seats and at two cell phones on the front passenger's seat. He then walks to the rear of the car and comments that "he" tossed something to "her." At 03:50, Sgt. Bobo asks PO Gentz and PO Salazar to tell him what happened before he arrived. PO Gentz explained the adversarial nature of the initial stop and that they already suspected forged plates and other things. Sgt. Bobo asked if forged plates were the reason they were taking § 87(2)(b) back and PO Gentz responded no and explained that units were called because § 87(2)(b) was trying to fight them. PO Gentz stated that he saw § 87(2)(b) go into his pockets and dump stuff out while he was refusing to sit in his vehicle. Sgt. Bobo asked PO Gentz if he searched the area yet and PO Gentz stated that he had not and was waiting for an additional unit to arrive. Sgt. Bobo then instructed PO Gentz to search the area where he saw § 87(2)(b) dump whatever it was that he dumped and to check the plates. PO Gentz then added that § 87(2)(b) also had an witness i-card for a triple homicide. Sgt. Bobo asked what the initial reason for the stop was and PO Gentz told him that it was for deficient brake lights but they were also investigating the license plate and the window tints. Sgt. Bobo again told PO Gentz to search the area where "he dropped some stuff." Starting at 01:20 of PO Gentz's 2nd BWC, after Sgt. Bobo instructed PO Gentz to search the area, PO Gentz searched the driver's side front and rear seats in § 87(2)(b)'s car (**Board Review 35**). At 17:45 of PO Salazar's BWC, PO Gentz searches the driver's side. At 18:40, PO Salazar briefly searches the front passenger's seat and then at 19:25 searches the front and rear seats on the passenger's side of the car (**Board Review 04**).

Sgt. Bobo stated that when he first arrived on scene, PO Gentz and PO Salazar told him that § 87(2)(b) had been fighting them. As Sgt. Bobo approached § 87(2)(b)'s stopped vehicle, he observed a forged license plate in the back window. He identified it as forged, in accordance with his training in auto larceny, because the plate did not have a state designation, and only said temporary tag. Sgt. Bobo instructed officers to arrest § 87(2)(b) for the forged license plate. As detailed above, Sgt. Bobo then observed § 87(2)(b) throw a cellphone and unknown "paraphernalia" onto the driver's seat and § 87(2)(b) picked them up. That action in combination with smelling the odor of marijuana coming from the vehicle led him to believe that drugs could be

inside the car. Sgt. Bobo then searched the front passenger's seat and then instructed the officers to search the vehicle based on the strong odor of marijuana emanating from the vehicle and the objects that were being thrown from § 87(2)(b) into the vehicle. Sgt. Bobo explained that smelling the odor of marijuana gave him probable cause to search the vehicle and the occupants therein. Sgt. Bobo testified that neither PO Gentz nor PO Salazar mentioned an odor of marijuana emanating from the vehicle to him and he did not communicate to any other officers that he smelled an odor of marijuana emanating from the vehicle. Sgt. Bobo testified that he did not have a reason for why he did not communicate to other officers that he smelled an odor of marijuana. Sgt. Bobo stated that when he subsequently asked PO Gentz, "are we taking him back for the forged plates?" he phrased the statement in the form of a question for training purposes to encourage his arresting officers to make a decision, however he had already made the decision to arrest § 87(2)(b) for the forged plates **(Board Review 36)**.

PO Gentz testified that when he said that he saw § 87(2)(b) "dump drugs on the floor" he was referring to what appeared to be small white baggies that § 87(2)(b) dropped on the street by his feet while he stood just outside his car. After additional officers arrived, PO Gentz looked on the ground and saw only wadded up papers. When officers approached § 87(2)(b) to arrest him, it was already determined that he was to be arrested for the forged license plate. At some point after § 87(2)(b) was arrested, PO Gentz searched the grabbable areas of § 87(2)(b)'s vehicle for safety purposes as the vehicle was going to be removed to the stationhouse for an inventory search **(Board Review 43)**.

PO Salazar testified that he and PO Gentz told Sgt. Bobo about the forged license plate when he arrived. Sgt. Bobo looked at the license plate and confirmed that it was forged, which verified the arrest. PO Salazar did not recall himself or PO Gentz informing Sgt. Bobo of the hand motion he observed or the suspected contraband they suspected § 87(2)(b) tossed. PO Salazar looked on the ground by the car and did not find any contraband. § 87(2)(b) was then handcuffed and placed into a police vehicle. The reachable areas of the vehicle were searched to ensure officer safety as the vehicle was being removed to the station house to be inventoried **(Board Review 44)**.

Sgt. Bobo stated that he searched the passenger's seat of the vehicle because of the scent of marijuana combined with § 87(2)(b)'s action of throwing a phone and an unidentified item into the car and § 87(2)(b) grabbing those items. § 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

§ 87(2)(b) was charged with § 87(2)(b) (Board Review 48) and per the property vouchers, § 87(2)(b)'s vehicle was removed to the station house and vouchered to “determine true owner” and the temporary license plate was listed as forged and vouchered as arrest evidence (Board Review 35). The BWC captured multiple mentions of a forged license plate prior to PO Gentz and PO Salazar’s search of the vehicle, though not before Sgt. Bobo’s search. § 87(2)(g)

The smell of marijuana smoke is sufficient to justify the search of an automobile, People v. Chestnut, 43 A.D.2d 260 (Board Review 46).

Where police have validly arrested the occupant of a vehicle, and have reason to believe that the car may contain evidence related to the crime for which the occupant was arrested, they may search the passenger compartment of the vehicle, People v. Belton, 55 N.Y.2d 49 (Board Review 42).

§ 87(2)(g)

Allegation (G) Abuse of Authority: Police Officer Jocelyn Romero frisked § 87(2)(b)

Allegation (H) Abuse of Authority: Police Officer Jocelyn Romero frisked § 87(2)(b)

PO Mancilla’s BWC footage showed PO Romero at 02:44 frisk § 87(2)(b) and § 87(2)(b) (Board Review 06). No BWC footage captured any officer instruct PO Romero to frisk the women. PO Romero resigned from the NYPD in February 2020 (Board Review 34).

§ 87(2)(g)

Allegation (I) Abuse of Authority: Police Officer Billy Dill threatened to arrest § 87(2)(b)

BWC captured PO Dill said to § 87(2)(b) “Ma’am, back up, if I tell you again, I’m going to lock you up for disorderly conduct.”

§ 87(2)(b) stated that a female officer asked her for her ID. § 87(2)(b) told her that her ID was in the car and the female officer told her to go and get it. PO Salazar found her ID and began to pass it to § 87(2)(b). As § 87(2)(b) neared the vehicle to get her ID from PO Salazar, PO Dill told her to get away from the car. A second officer followed and asked § 87(2)(b) why she was not listening. § 87(2)(b) was confused and argued that the female officer told her to get her ID and that PO Salazar was passing it to her. PO Dill told her to back up. § 87(2)(b) did not allege that anyone threatened to arrest her.

PO Dill’s BWC beginning at 06:03 and ending 07:04 shows § 87(2)(b) and § 87(2)(b) standing behind § 87(2)(b)'s vehicle. Sgt. Bobo tells them they are free to leave and the car is being confiscated. § 87(2)(b) asks what they are supposed to do. Sgt. Bobo replies that they can call a cab or something, but they are free to go. § 87(2)(b) then asks why § 87(2)(b) is being arrested. Sgt. Bobo replies that he is going to jail, and they are free to go. § 87(2)(b) asks why. Sgt. Bobo then tells § 87(2)(b) and § 87(2)(b) to step away from the vehicle. § 87(2)(b) steps from

behind the vehicle onto the sidewalk and says, ok I'm away from the car why is he going to jail? Sgt. Bobo does not reply to § 87(2)(b)'s question. While remaining on the sidewalk, § 87(2)(b) asks if she can get something from the vehicle and walks towards the front passenger's side door while remaining on the sidewalk. PO Salazar is standing within the open front passenger's side door shining a flashlight into the vehicle. PO Salazar calmly asks her what she needs and § 87(2)(b) states that she needs to get her debit card. At the same time, PO Dill approaches § 87(2)(b) and stands between her and PO Salazar and tells § 87(2)(b) to "back up from the car, ma'am, back up from the car, I'm not going to tell you twice." § 87(2)(b) calmly says, "he's asking me where it is." PO Dill immediately replies, I'm telling you to back up from the car. § 87(2)(b) takes one step back and PO Salazar says, "yah, just talk to me from over there." § 87(2)(b) then steps to her right, parallel to the car and away from PO Dill, pointing toward the car and tells PO Salazar, it's right in the first drawer. At the same time. PO Dill shines his flashlight onto § 87(2)(b). While waiting for PO Salazar to find the debit card § 87(2)(b) takes one step forward, toward PO Dill, appearing to be inches from him, and PO Dill elevates his voice and says, "ma'am, if I tell you again, I'm going to lock you up for disorderly conduct." At the same time PO Keynaya Gorman, steps in-between § 87(2)(b) and PO Dill and says, "ma'am back up please." § 87(2)(b) takes approximately three steps backwards, says she is sorry and thought PO Salazar was passing her the card, and says that the officers are being very rude. PO Gorman replies, "you're being rude by not following orders; you were told to back up (**Board Review 08**)."

PO Salazar's BWC covers the same interaction starting at 23:10. At 23:30, PO Salazar can more clearly be heard saying to § 87(2)(b) "talk to me from over there."

PO Dill acknowledged that he told § 87(2)(b) to back up or that he would lock her up for disorderly conduct for failing to comply with his multiple orders to back away from the car. PO Dill stated that § 87(2)(b) was very close to the car and he did not want her to be able to obtain anything from the car or get too close to PO Salazar, who was searching the car, for safety reasons (**Board Review 40**).

According to NY Penal Law § 240.20, a person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof: he engages in fighting or in violent, tumultuous or threatening behavior, congregates with other persons in a public place and refuses to comply with a lawful order of the police to disperse; or he creates a hazardous or physically offensive condition by any act which serves no legitimate purpose (**Board Review 41**).

According to New York Penal Law Section 195.05, a person is guilty of obstructing governmental administration when he intentionally obstructs the administration of law or other governmental function or by means of physical force or interference (**Board Review 37**).

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one CCRB complaint and has been named as a victim in four allegations (**Board Review 21**).

- § 87(2)(b)

Squad No.: 1

Investigator: Inv. Frazier 5.21.21
Signature Print Title & Name Date

Squad Leader: Mgr. Joy Almeyda 6.2.21
Signature Print Title & Name Date

Reviewer:
Signature Print Title & Name Date